

SENATE BILL 2164

By Briggs

AN ACT to amend Tennessee Code Annotated, Title 2 and
Title 49, relative to elections.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Election Integrity Act of 2026."

SECTION 2. Tennessee Code Annotated, Section 2-8-105, is amended by designating the existing language as subsection (a) and adding the following as a new subsection (b):

(b) A local election, as defined in SECTION 3, must not be certified if a challenge has been filed pursuant to SECTION 3 until the challenge process is complete. Only the election being challenged is affected by this subsection (b). Any other elections on the ballot may be certified.

SECTION 3. Tennessee Code Annotated, Title 2, Chapter 17, is amended by adding the following as a new section:

(a) As used in this section, "local election" means a general election for a public office of a county or city, including elections for members of local boards of education.

(b) A candidate in a local election may file a challenge to the election results if the candidate has reason to believe errors were made in the administration of the election.

(c) A candidate challenging local election results must file the challenge in writing with the county election commission that administered the election within ten (10) business days of the election.

(d) Upon receiving a challenge under subsection (c), the county election commission shall investigate the claims made by the candidate in the challenge. The county election commission shall conclude the investigation no later than fifteen (15)

days after receiving the challenge. The county election commission shall send all evidence gathered as part of the investigation to the state election commission.

(e) Within twenty-one (21) business days of receiving evidence pursuant to subsection (d), the state election commission shall decide the challenge of the local election based on the evidence provided by the county election commission. If the state election commission finds:

(1) That the claims of the candidate do not have merit or the claims have merit but the errors in administration would not change the outcome of the election, then the state election commission shall provide an explanation of their decision to the candidate who made the challenge and notify the county election commission to proceed with certifying the election under § 2-8-105; or

(2) That the claims of the candidate have merit and the errors may change the outcome of the election, then the state election commission shall direct the county election commission to order a special election.

(f) A candidate who challenges an election result under this section is not precluded from contesting the election under this chapter.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.